

Custorian.

The constitution of the association: purpose, membership, general assembly, board, protected provisions, amendment and dissolution. Danish and English.

DOCUMENT Vedtægter / Articles of Association v1.2

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DATE 21 July 2026

OWNER Foreningen Custorian, CVR 46399455, Odense, Denmark

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FORENINGEN CUSTORIAN – CVR 46399455 – ODENSE – THE STANDARD CANNOT BE BOUGHT.

VEDTÆGTER / ARTICLES OF ASSOCIATION

for foreningen / for the association Custorian

§ 1 — Navn og hjemsted / Name and domicile

1.1. Foreningens navn er **Custorian**. The name of the association is Custorian.

1.2. Foreningen har hjemsted i Odense, Odense Kommune. The association is domiciled in Odense, Municipality of Odense, Denmark.

§ 2 — Formål / Purpose

2.1. Foreningens formål er at: The purpose of the association is to:

1. Udvikle og vedligeholde en åben standard og referenceimplementering for beskyttelse af børn og unge mod digitale trusler, herunder online grooming, cybermobning, selvskade og vold i digitale miljøer; (a) Develop and maintain an open standard and reference implementation for protecting children and young people from digital threats including online grooming, cyberbullying, self-harm, and violence in digital environments;
2. Gennemføre og deltage i forskning om digitale teknologiers indvirkning på børns mentale sundhed; (b) Conduct and participate in research on the impact of digital technologies on children's mental health;
3. Fremme digital sikkerhed, modstandskraft og digital dannelse blandt børn, unge og familier i Europa; (c) Promote digital safety, resilience, and literacy among children, young people, and families in Europe;
4. Samarbejde med uddannelsesinstitutioner, offentlige myndigheder, ikke-statslige organisationer, teknologiplatforme og internationale organer for at fremme børns digitale sikkerhed; (d) Collaborate with educational institutions, public authorities, non-governmental organisations, technology platforms, and international bodies to advance child digital safety;
5. Udvikle open source-værktøjer, publicere forskning og administrere certificeringsstandarder, der bidrager til evidensbaseret børnebeskyttelsespolitik. (e) Develop open-source tools, publish research, and administer certification standards that contribute to evidence-based child protection policy.

2.2. Foreningen er almennyttig. Et eventuelt overskud skal udelukkende anvendes til fremme af de i § 2.1 nævnte formål. The association is non-profit. Any surplus shall be used exclusively to further the purposes stated in § 2.1.

§ 3 — Medlemskab / Membership

3.1. Som medlem kan efter bestyrelsens beslutning optages (a) enhver fysisk person og (b) enhver almennyttig civilsamfundsorganisation, der støtter foreningens formål. Kommercielle virksomheder, herunder platforme og tjenester, der er eller kan blive genstand for vurdering efter foreningens standard, kan ikke optages som medlemmer. Bestyrelsen kan afvise en ansøgning, der efter dens skøn fremstår koordineret eller egnet til at skade foreningens uafhængighed. The following may be admitted as members by decision of the board: (a) any natural person and (b) any non-profit civil-society organisation supporting the association's purpose. Commercial companies — including platforms and services that are or may become subject to assessment under the association's standard — are not eligible for membership. The board may refuse an application which, in its judgement, appears coordinated or liable to harm the association's independence.

3.2. Medlemskab er frivilligt. Et medlem kan til enhver tid udtræde ved skriftlig meddelelse til bestyrelsen. Membership is voluntary. A member may resign at any time by written notice to the board.

3.3. Bestyrelsen kan ekskludere et medlem, der handler i strid med foreningens formål eller interesser. Det ekskluderede medlem kan appellere til generalforsamlingen. The board may exclude a member who acts contrary to the association's purpose or interests. The excluded member may appeal to the general assembly.

§ 4 — Generalforsamling / General assembly

4.1. Generalforsamlingen er foreningens øverste myndighed. The general assembly is the supreme authority of the association.

4.2. Ordinær generalforsamling afholdes én gang årligt, senest den 30. juni. An ordinary general assembly shall be held once per year, no later than 30 June.

4.3. Generalforsamlingen indkaldes af bestyrelsen med mindst 14 dages varsel per e-mail til alle medlemmer. The general assembly shall be convened by the board with at least 14 days' notice by email to all members.

4.4. Dagsordenen for den ordinære generalforsamling skal indeholde: / The agenda shall include:

1. Valg af dirigent / Election of chair of the meeting
2. Bestyrelsens beretning / Board report on activities
3. Fremlæggelse og godkendelse af årsregnskabet / Presentation and approval of annual accounts
4. Forslag fra bestyrelsen eller medlemmer / Proposals from the board or members
5. Godkendelse af budget / Approval of budget
6. Valg af bestyrelsesmedlemmer / Election of board members
7. Valg af revisor, når det er relevant, jf. § 7.4 / Election of auditor, where applicable, cf. § 7.4
8. Eventuelt / Any other business

4.5. Beslutninger træffes ved simpelt flertal. Hvert medlem har én stemme. Decisions are made by simple majority. Each member has one vote.

4.6. Vedtægtsændringer kræver to tredjedels flertal. Amendments to these articles require a two-thirds majority.

4.7. Ekstraordinær generalforsamling afholdes, hvis bestyrelsen beslutter det, eller hvis mindst en tredjedel af medlemmerne skriftligt anmoder herom. An extraordinary general assembly shall be held if the board decides so, or if at least one-third of members request it in writing.

4.8. Stemmeret på en generalforsamling forudsætter, at medlemskabet har bestået uafbrudt i mindst tre måneder forud for generalforsamlingen, og at forfaldent kontingent er betalt. Medlemmer optaget ved foreningens stiftelse anses for at opfylde kravet. 4.8. Voting at a general assembly requires that membership has subsisted without interruption for at least three months prior to the general assembly and that any fee due has been paid. Members admitted at the association's founding are deemed to satisfy this requirement.

§ 5 — Bestyrelse / Board

5.1. Foreningen ledes af en bestyrelse på **1 til 5 medlemmer**. Valgte bestyrelsesmedlemmer vælges af generalforsamlingen for en periode på 2 år. Valgene tilrettelægges forskudt, således at højst halvdelen (oprundet) af de valgte poster er på valg på samme ordinære generalforsamling; om nødvendigt vælges enkelte medlemmer første gang for ét år for at etablere forskydningen. Genvalg kan finde sted. The association is managed by a board of 1 to 5 members. Elected board members are elected by the general assembly for a term of 2 years. Elections are staggered so that no more than half (rounded up) of the elected seats are up for election at the same ordinary general assembly; where necessary, individual members are elected for an initial one-year term to establish the stagger. Re-election is permitted.

5.2. Stifteren, Tanya Becheva, er født medlem af bestyrelsen, så længe hun er medlem af foreningen og ikke skriftligt har frasagt sig hvervet. Stifteren er bestyrelsens **formand** indtil den 31. december 2031, medmindre hun forinden frasiger sig formandshvervet eller varigt er forhindret i at varetage det. Herefter — og i øvrigt når formandsposten er ledig — vælger bestyrelsen af sin midte en formand. Formanden fungerer tillige som kasserer, medmindre bestyrelsen beslutter andet. The founder, Tanya Becheva, is a member of the board by right for as long as she is a member of the association and has not resigned the seat in writing. The founder is chair of the board until 31 December 2031, unless she earlier resigns the chair or is permanently unable to serve. Thereafter — and otherwise whenever the chair is vacant — the board elects a chairperson from among its members. The chairperson also serves as treasurer unless the board decides otherwise.

5.3. Bestyrelsen mødes efter behov og mindst **to gange årligt**. The board meets as necessary and at least twice per year.

5.4. Beslutninger træffes ved simpelt flertal. Ved stemmelighed er formandens stemme afgørende. Decisions are made by simple majority. In case of a tie, the chairperson's vote is decisive.

5.5. Bestyrelsen kan nedsætte arbejdsgrupper samt ansætte medarbejdere eller konsulenter. The board may appoint working groups, employees, or consultants as needed.

5.6. Det faglige indhold af foreningens standard — herunder kontroller, scoringsmetodik og vurderingsmetode — fastlægges gennem foreningens tekniske governance-proces (faglige udvalg, rådgivende panel og offentlig høring) og er ikke genstand for afstemning på generalforsamlingen. Certificering udstedes alene af uafhængige, akkrediterede certificeringsorganer; hverken generalforsamlingen, bestyrelsen eller enkeltmedlemmer kan træffe, ændre eller instruere om konkrete certificeringsafgørelser. 5.6. The technical content of the association's standard — including controls, scoring methodology, and assessment method — is determined through the association's technical governance process (technical committees, advisory panel, and public consultation) and is not subject to a vote of the general assembly. Certification is issued solely by independent, accredited certification bodies; neither the general assembly, the board, nor individual members may take, alter, or give instructions regarding individual certification decisions.

§ 6 — Tegningsret / Authority to sign

6.1. Foreningen tegnes af **formanden**. The association is bound by the signature of the chairperson.

6.2. Bestyrelsen kan meddele fuldmagt i konkrete sager. The board may grant power of attorney for specific matters.

§ 7 — Økonomi / Finances

7.1. Foreningens virksomhed finansieres gennem tilskud, donationer, projektmidler, kontingenter og indtægter fra ydelser i overensstemmelse med foreningens formål. The association's activities are financed through grants, donations, project funding, membership fees, and income from services aligned with the association's purpose.

7.2. Foreningens regnskabsår følger kalenderåret (1. januar – 31. december). The financial year follows the calendar year (1 January – 31 December).

7.3. Første regnskabsår løber fra stiftelsesdatoen til den 31. december 2026. The first financial year runs from the founding date until 31 December 2026.

7.4. Indtil foreningen modtager væsentlige projektmidler eller ansøger om godkendelse som almenvelgørende (ligningslovens § 8 A / § 12), føres regnskabet af formanden og fremlægges til medlemmernes gennemgang på den ordinære generalforsamling. Når en sådan situation indtræder, vælger generalforsamlingen en revisor. Until the association receives material project funding or applies for approval as a public-benefit organisation (§ 8 A / § 12 of the Danish Tax Assessment Act), the accounts are kept by the chairperson and presented for member review at the ordinary general assembly. When such a situation arises, the general assembly shall elect an auditor.

7.5. Intet medlem, bestyrelsesmedlem eller anden person tilknyttet foreningen kan modtage udlodning af overskud. Rimelig kompensation for udført arbejde er tilladt. No member or board member may receive profit distribution. Reasonable compensation for work performed is permitted.

§ 8 — Hæftelse / Liability

8.1. Foreningen hæfter alene for sine forpligtelser med sin formue. The association alone is liable for its obligations with its assets.

8.2. Intet medlem eller bestyrelsesmedlem hæfter personligt for foreningens forpligtelser. No member or board member is personally liable for the association's obligations.

§ 9 — Opløsning / Dissolution

9.1. Opløsning kræver to tredjedeles flertal på to på hinanden følgende generalforsamlinger afholdt med mindst 14 dages mellemrum. Dissolution requires a two-thirds majority at two consecutive general assemblies held at least 14 days apart.

9.2. Ved opløsning overdrages resterende aktiver til organisationer med lignende formål. Aktiver kan ikke udloddes til medlemmer. Upon dissolution, remaining assets shall be transferred to organisations with a similar purpose. Assets may not be distributed to members.

§ 10 — Beskyttede bestemmelser og stifterens samtykke / Protected provisions and founder consent

10.1. Så længe stifteren er medlem af foreningen, kræver følgende beslutninger — ud over de flertal, der følger af § 4.6 og § 9 — stifterens skriftlige samtykke: (a) ændring af § 2 (formål), § 3.1 (medlemskreds), § 5.2 (stifterens sæde og formandskab), § 5.6 (standardens faglige uafhængighed), § 9 (opløsning) eller nærværende § 10; (b) overdragelse, salg, eksklusiv licensering eller opgivelse af foreningens standard, navn eller varemærker; (c) beslutning om, at kommercielle virksomheder kan optages som medlemmer.

10.1. For as long as the founder is a member of the association, the following decisions require — in addition to the majorities under § 4.6 and § 9 — the founder's written consent: (a) amendment of § 2 (purpose), § 3.1 (member eligibility), § 5.2 (founder seat and chair), § 5.6 (technical independence of the standard), § 9 (dissolution), or this § 10; (b) transfer, sale, exclusive licensing, or abandonment of the association's standard, name, or trademarks; (c) any decision to admit commercial companies as members.

10.2. Stk. 10.1 bortfalder uden videre, når stifteren ophører med at være medlem af foreningen. 10.2. Paragraph 10.1 lapses automatically when the founder ceases to be a member of the association.

§ 11 — Stiftelse / Founding

11.1. Disse vedtægter blev vedtaget den **11. april 2026** i Odense, Danmark. These articles were adopted on 11 April 2026 in Odense, Denmark.

11.2. Den stiftende bestyrelse: / The founding board:

Formand og kasserer / Chairperson and Treasurer: Navn/Name: Tanya Becheva Adresse/Address: Skibhusvej 205, 5000 Odense C, Denmark

§ 12 — Ændringslog / Amendment log

VERSION	DATO / DATE	ÆNDRING / CHANGE
1.0	11. april 2026	Oprindelige vedtægter vedtaget på stiftende generalforsamling. / Original articles adopted at founding general assembly.
1.1	28. juni 2026	§ 7.4 ændret: revisor vælges først, når foreningen modtager væsentlige projektmidler eller ansøger om almenvelgørende status; indtil da fører formanden regnskabet til medlemsgennemgang. § 4.4(g)

VERSION	DATO / DATE	ÆNDRING / CHANGE
		konsekvensrettet. Vedtaget på ordinær generalforsamling 28. juni 2026 (1/1 stemmer, jf. § 4.6). / § 7.4 amended: auditor elected only once the association receives material funding or applies for public-benefit status; until then the chairperson keeps the accounts for member review. § 4.4(g) updated accordingly. Adopted at ordinary general assembly 28 June 2026 (1/1 votes, per § 4.6).
1.2	21. juli 2026	Governance-pakke vedtaget på ekstraordinær generalforsamling (totalforsamling, varsel enstemmigt fraveget) 21. juli 2026 (1/1 stemmer, jf. § 4.6): § 3.1 medlemskreds præciseret (kommercielle virksomheder udelukket); nyt § 4.8 stemmeretskarens (3 mdr.); § 5.1 forskudte valgperioder; § 5.2 stifterens sæde og formandskab indtil 31. december 2031; nyt § 5.6 standardens faglige uafhængighed; nyt § 10 beskyttede bestemmelser og stifterens samtykke; tidligere §§ 10–11 omnummereret til §§ 11–12. / Governance package adopted at extraordinary general assembly (plenary; notice unanimously waived) 21 July 2026 (1/1 votes, per § 4.6): § 3.1 member eligibility clarified (commercial companies excluded); new § 4.8 three-month voting tenure; § 5.1 staggered terms; § 5.2 founder seat and chair until 31 December 2031; new § 5.6 technical independence of the standard; new § 10 protected provisions and founder consent; former §§ 10–11 renumbered §§ 11–12.

Underskrift / Signature:



Tanya Becheva, Formand / Chairperson

Dato / Date: 11. april 2026